

26STCP02245 26STCP02245

County: los-angeles

Division: Civil Law and Motion

Department: 506

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Case Number: 26STCP02245 Hearing Date: August 13, 2026 Dept: 506

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES - CENTRAL DISTRICT

J.G. WENTWORTH ORIGINATIONS,

LLC,

Petitioner,

vs.

KAIWANN KING,

Respondent.

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CASE NO.: 26STCP02245

[TENTATIVE] ORDER DENYING AMENDED PETITION
FOR APPROVAL OF TRANSFER OF STRUCTURED SETTLEMENT PAYMENT RIGHTS

Dept. 506

8:30 a.m.

August 13, 2026

On June 22, 2025, Petitioner

J.G. Wentworth Originations, LLC filed an Amended Petition for approval of transfer of structured settlement payment rights ("Petition"). The Petition seeks transfer of certain structured settlement payment rights held by Kaiwann King ("Payee") under a settlement in connection with a personal injury claim. (Petition at p. 2, ¶ 3.) If approved, Payee will transfer to Petitioner 60 monthly payments of \$1,038.96 each, beginning on January 20, 2027 and ending on December 20, 2031. (Petition at p. 2, ¶ 4.) In exchange, Petitioner will pay Payee \$40,000.00. (Petition at p. 4.)

DISCUSSION

A

direct or indirect transfer of structured settlement payment rights is not effective unless the transfer has been approved in a final court order based on certain express written findings by the Court. (Ins. Code, § 10139.5, subd. (a).)

The

transfer must be in the best interest of the payee, taking into account the welfare and support of the payee's dependents. (Ins.

Code, § 10139.5, subd. (a)(1).) When determining

whether the transfer is fair, reasonable, and in the payee's best interests, the

Court must consider the totality of the circumstances, including but not limited

to: (1) the reasonable preference and desire of the payee to complete the proposed

transaction, taking into account the payee's age, mental capacity, legal knowledge,

and apparent maturity level; (2) the stated purpose of the transfer; (3) the payee's

financial and economic situation; (4) the terms of the transaction, including whether

the payee is transferring monthly or lump sum payments or all or a portion of his

or her future payments; (5) whether, when the settlement was completed, the future

periodic payments that are the subject of the proposed transfer were intended to

pay for the future medical care and treatment of the payee relating to injuries

sustained by the payee in the incident that was the subject of the settlement and

whether the payee still needs those future payments to pay for that future care

and treatment; (6) whether, when the settlement was completed, the future periodic

payments that are the subject of the proposed transfer were intended to provide

for the necessary living expenses of the payee and whether the payee still needs

the future structured settlement payments to pay for future necessary living expenses;

(7) whether the payee is, at the time of the proposed transfer, likely to require

future medical care and treatment for the injuries that the payee sustained in connection

with the incident that was the subject of the settlement and whether the payee lacks

other resources, including insurance, sufficient to cover those future medical expenses;

(8) whether the payee has other means of income or support, aside from the structured

settlement payments that are the subject of the proposed transfer, sufficient to

meet the payee's future financial obligations for maintenance and support of the

payee's dependents, specifically including, but not limited to, the payee's child

support obligations, if any; (9) whether the financial terms of the transaction,

including the discount rate applied to determine the amount to be paid to the payee,

the expenses and costs of the transaction for both the payee and the transferee,

the size of the transaction, the available financial alternatives to the payee to

achieve the payee's stated objectives, are fair and reasonable; (10) whether the

payee completed previous transactions involving the payee's structured settlement

payments and the timing and size of the previous transactions and whether the payee

was satisfied with any previous transaction; (11) whether the transferee attempted

previous transactions involving the payee's structured settlement payments that

were denied, or that were dismissed or withdrawn prior to a decision on the merits,

within the past five years; (12) whether, to the best of the transferee's knowledge

after making inquiry with the payee, the payee has attempted structured settlement payment transfer transactions with another person or entity, other than the transferee, that were denied, or which were dismissed or withdrawn prior to a decision on the merits, within the past five years; (13) whether the payee, or his or her family or dependents, are in or are facing a hardship situation; (14) whether the payee received independent legal or financial advice regarding the transaction; and (15) any other factors or facts that the payee, the transferee, or any other interested party calls to the attention of the reviewing court or that the court determines should be considered in reviewing the transfer.

(Ins. Code., § 10139.5, subd. (b).)

Payee

is a single 22-year-old with no children.

(King Decl. ¶ 8.) Payee is unemployed,

but he receives payments of \$1,038.96 per month from his annuity. (King Decl. ¶ 8.)

Plaintiff

chose not to proceed with a transfer in Case No. 22STCP00025, so that action was dismissed in March 2022. (See King Decl.

¶ 10.) Plaintiff again asked to dismiss a

transfer in Case No. 23CMCP00148 in October 2023. (See King Decl. ¶ 10.)

On

January 23, 2025, Payee completed a transaction in Case No. 24CMCP00156, where transferred monthly payments of \$1,038.96 beginning January 20, 2032 through and including November 20, 2051 in exchange for “\$40,3167.9 [sic]”.

(King Decl. ¶ 9.) Payee's declaration

in that action attested that he intended to use the funds to pay for tuition to become a clinical nutritionist and invest a portion of the transfer price with his specialized fiduciary financial advisory team in order to, after the investments have grown, purchase a home.

The

current Petition seeks to transfer 60 monthly payments of \$1,038.96 each, beginning

on January 20, 2027 and ending on December 20, 2031. Thus, after receiving his December 2026 payment,

Plaintiff will have no more guaranteed annuity payments for twenty-five years.[1] (See Petition, Ex. C.) Payee's current Petition asserts that he is “currently

experiencing a financial hardship” and intends to use the funds “to help pay for

vocational school tuition, living expenses while enrolled in school and car insurance,”

as well as to secure a stable place to live.

(King Decl. ¶ 11.) There is no information about what happened with the \$40,316.79 he received for similar purposes in Case No. 24CMCP00156.

Considering all the factors, under these circumstances, the Court cannot find that the transfer of Payee's sole income source would be in Payee's best interest.

CONCLUSION

The Petition is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 13th day of August 2026

Hon. Thomas D. Long

Judge of the Superior Court

[1] Payee may begin receiving monthly annuity payments of \$1,038.96 "for life" again after his last guaranteed payment in November 2051.